

Dharmendra Kumar Tripathi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 December 2022 · WRIT - C No. 34508 of 2022 · **Writ disposed; liberty to apply under Supply Code 2005 for consideration in accordance with law.**

HEADNOTE

A writ seeking mandamus for a new or separate electricity connection to a partitioned ancestral house was disposed of without any opinion on merits. The petitioner was given liberty to apply within four weeks to the Chief Executive Engineer, KESKO, Kanpur Nagar, complying with the U.P. Electricity Supply Code, 2005. If so applied, the competent authority is to pass orders in accordance with law, preferably within the next four weeks.

FACTUAL SUMMARY

The petitioner sought a writ of mandamus directing the State and electricity authorities to provide a new or separate electricity connection to his partitioned ancestral house at 35/71, Bangali Mohal, Kanpur Nagar. Counsel for the petitioner and the standing counsel for respondents 1 and 2 were heard; none appeared for respondent 3. The standing counsel submitted that the petitioner could apply to respondent 3 for the connection, which would then be considered and decided in accordance with law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

new connection application

HOLDING

Without expressing any opinion on merits, the Court disposed of the writ with liberty to the petitioner to apply within four weeks to the Chief Executive Engineer, KESKO, Kanpur Nagar, for an electricity connection complying with the U.P. Electricity Supply Code, 2005; on such an application, the competent authority shall pass appropriate orders in accordance with law, preferably within the next four weeks. ¶ 1

PRINCIPLE TAGS

apply-under-supply-code-consider-in-accordance-with-law The Court refused mandamus for a new or separate connection and remitted the petitioner to apply to KESKO under the U.P. Electricity Supply Code, 2005, for consideration in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO A NEW OR SEPARATE ELECTRICITY CONNECTION ON THE PARTITIONED ANCESTRAL PREMISES

The Court expressly declined to express any opinion on the merits. ¶ 1